

LEGAL STATUS, AUTHORITY, POWERS AND DUTIES

This policy delineates the foundational status, authorities, and powers of the Loudoun County School Board as they derive from Virginia Law. This policy is not intended to limit the School Board to only the authorities and powers listed here.

A. Legal Status.

1. The School Board of Loudoun County Public Schools derives its authority from the Constitution of Virginia, the Code of Virginia, and the regulations of the State Board of Education.

2. The Loudoun County School Board members are officers of the Commonwealth.

3. The Loudoun County School Board governs the School Division.

4. The School Board is a corporate body whose official title is "Loudoun County School Board."

B. Authority. The Loudoun County School Board is a body corporate, and in its corporate capacity is vested with all the powers and charged with all the duties, obligations, and responsibilities imposed upon school boards by law and may sue, be sued, contract, be contracted with, and purchase, take, hold, lease and convey school property, both real and personal. School Board members shall have no authority or duties except such as may be assigned to them by the School Board as a whole.

C. Powers and Duties.

1. The School Board has the Constitutional power and duty of supervision of the schools in Loudoun County. Certain specific powers and duties are enumerated in State law; in addition, other duties may be prescribed by the General Assembly or the State Board of Education.

2. In furtherance of this, the Loudoun County School Board shall:

- a. Adopt policy to provide for the day-to-day supervision of schools;
- b. See that the school laws are properly explained, enforced and observed;
- c. Secure, by visitation or otherwise, as full information as possible about the conduct of the public schools in the School Division and take care that they are conducted according to law and with the utmost efficiency;
- d. Care for, manage and control the property of the School Division and

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provide for the erecting, furnishing, equipping, and noninstructional operating of necessary school buildings and appurtenances and the maintenance thereof by purchase, lease, or other contracts;

- e. Provide for the consolidation of schools or redistricting of school boundaries or adopt pupil assignment plans whenever such procedure will contribute to the efficiency of the School Division;
- f. Insofar as not inconsistent with state statutes and regulations of the Board of Education, operate and maintain the public schools in the School Division and determine the length of the school term, the studies to be pursued, the methods of teaching and the government to be employed in the schools;
- g. Perform such other duties as shall be prescribed by the Board of Education or as are imposed by law;
- h. Obtain public comment through a public hearing not less than seven (7) days after reasonable notice to the public in a newspaper of general circulation in the School Division prior to providing (i) for the consolidation of schools; (ii) the transfer from the public school system of the administration of all instructional services for any public school classroom or all noninstructional services in the School Division pursuant to a contract with any private entity or organization; or (iii) in School Divisions having 15,000 pupils or more in average daily membership, for redistricting of school boundaries or adopting any pupil assignment plan affecting the assignment of 15 percent or more of the pupils in average daily membership in the affected school. Such public hearing may be held at the same time and place as the meeting of the School Board at which the proposed action is taken if the public hearing is held before the action is taken. If a public hearing has been held prior to the effective date of this provision on a proposed consolidation, redistricting or pupil assignment plan which is to be implemented after the effective date of this provision, an additional public hearing shall not be required;
- i. At least annually, survey the School Division to identify critical shortages of teachers and administrative personnel by subject matter, specialized student support positions, and school bus drivers and reports such critical shortages to the Superintendent of Public Instruction and to the Virginia Retirement System; however, the School Board may request the LCPS Superintendent to conduct such survey and submit such report to the School Board, the Superintendent, and the Virginia Retirement System. Specialized student support positions include school social workers, school psychologists, school nurses,

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licensed behavior analysts, licensed assistant behavior analysts, and other licensed health and behavioral positions, which may either be employed by the School Board or provided through contracted services.;

- j. Ensure that the public schools within the School Division are registered with the Department of State Police to receive from the State Police electronic notice of the registration or reregistration of any sex offender within that School Division pursuant to § [9.1-914](#);
- k. Ensure that the information sheet on the Supplemental Nutrition Assistance Program (SNAP) benefits program developed and provided by the Department of Social Services, pursuant to subsection D of Va. Code § 63.2-801 is sent home with each student enrolled in an LCPS elementary or secondary school at the beginning of each school year or, in the case of any student who enrolls after the beginning of the school year, as soon as practicable after enrollment;
- l. Ensure that a fillable free or reduced-priced meals' application is sent home with each student enrolled in an LCPS elementary or secondary school at the beginning of each school year, or in the case of any student who enrolls after the beginning of the school year, as soon as practicable after enrollment; and
- m. Ensure that at any LCPS back-to-school night event to which the parents of enrolled students are invited, any parent in attendance receives prominent notification of and access, in paper or electronic form, or both, to information about application and eligibility for free or reduced-price meals for students and a fillable free or reduced-price meals' application that may be completed and submitted on site.

[Former Policy 2-1] Adopted:
8/11/70

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Legal Refs: [Constitution of Virginia, Article VIII, §7](#), Code of Virginia §§ [9.1-914](#), [22.1-2](#), [22.1-28](#), [22.1-31](#), [22.1-70.3](#), [22.1-71](#), [22.1-78](#) [22.1-79](#), [22.1-253.13:2](#)